

FROM Robert Samuel White
TO David Pitcher
CC Todd Albert; MILES Cameron D * GOV; Governor Kotek
DATE October 9, 2026, 9:29 PM PT
SUBJECT **Re: Publication of the October 1, 2026 Public Records Order, DOJ File No. 121010-GA0187-26**
ATTACHED 4135.jpg, 4133.jpg

Mr. Pitcher,

The October 1 order now appears in the Law Library collection. Two things in its listing are not accurate.

The date. The order is listed under September 24, 2026, the date of the first order. The October 1 order decided a separate petition. It states: "This letter is the Attorney General's response to your September 25, 2026, petition for disclosure." The Public Records Law provides no process for reconsideration, so I filed a second petition on a separate ground. That it shares a file number with the first does not make it the same petition or the same date.

The description. The listing describes the order as: "Requesting that the AG order the Oregon Governor's Office to respond to a public records." Neither of my petitions asked that. The first challenged the denial of my fee waiver and a fee of \$572.50 set while the office withheld the instructions for paying it. The second challenged the fee waiver denial alone, and the October 1 order says so: "Your petition challenges a fee waiver decision made by the Oregon Governor's Office."

The September 24 order described my first petition the same way: "Your petition asks the Attorney General to order the Oregon Governor's Office to respond to a public records request made by you." That is not what the petition asked, and the listing now applies that description to both.

The October 1 order is the only order in the collection that cites Public Records Order, Oct 2, 2014, Sebens. As listed, a requester searching the collection would find it dated September 24 and described as a request to compel a response, with nothing to show that the Attorney General has applied ORS 192.427 to a fee waiver decision.

Please correct the date and the description of the October 1 order.

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